

2018 M L D 149

[Lahore (Multan Bench)]

Before Abid Aziz Sheikh and Jawad Hassan, JJ

KHALID NADEEM---Petitioner

Versus

GOVERNMENT OF PAKISTAN and others---Respondents

I.C.A. No.96 of 2017, decided on 17th May, 2017.

National Database and Registration Authority Ordinance (VIII of 2000)---

---Ss. 17(1) & 30(1)(d)---Non-Surrendering of CNIC of the deceased---Penal consequences---Scope---Petitioner under constitutional jurisdiction of the High Court had sought directions to NADRA to get recovered original CNIC of his deceased father from the possession of his brother/respondent---Respondent (brother) denied possession of original CNIC of their late father---Father of petitioner and respondent was undisputedly, holding a CNIC---Section 17(1) of the National Database and Registration Authority Ordinance, 2000 provided that in case of death of holder of a Card, inter alia, the heirs were bound to surrender Card of deceased within 60 days of such death---Refusal or failure to produce or surrender the card entailed penal consequences under S.30(1)(d) National Database and Registration Authority Ordinance, 2000 and in view of clear provisions of Ss. 17(1) and 30(1)(d) National Database and Registration Authority Ordinance, 2000, it was the legal duty of NADRA to direct the concerned person to surrender the original CNIC of the deceased, if same was not already produced---If the legal heirs were not in possession of original Card of deceased, they might satisfy the concerned Authority to that effect---NADRA was directed by the High Court to proceed in the matter strictly in accordance with provisions of National Database and Registration Authority Ordinance 2000---Intra-court appeal was allowed accordingly.

Ijaz Ahmad Toor for Appellant.

Zia ur Rehman Abid for Respondents Nos. 1 and 2.

Muhammad Sajid Iqbal Chaudhry for Respondent No.3.

ORDER

ABID AZIZ SHEIKH, J.---Through this appeal, the appellant has challenged the order dated 17.02.2017 whereby the writ petition filed by the appellant was dismissed.

2. Relevant facts are that appellant filed writ petition, seeking direction against NADRA Authorities to ensure the surrender of CNIC of appellant's deceased father, Ashiq Muhammad Khan from possession of appellant's brother i.e. respondent No.3. The writ petition was dismissed, hence this appeal.

3. Learned counsel for the appellant submits that he is only seeking direction against respondent No.2 NADRA to direct respondent No.3, to surrender the CNIC of the deceased father of the appellant. He submits that under section 17 of the National Database and Registration Authority Ordinance, 2000 (Ordinance), the respondent No.3 being legal heir of deceased Ashiq Muhammad Khan is bound to surrender the CNIC of deceased holder of Card. Learned counsel for the appellant submits that this aspect of the matter was not properly

appreciated in the impugned order by the learned Single Bench.

4. Learned counsel for NADRA when confronted submits that NADRA, will proceed in the matter, strictly in accordance with provisions of the Ordinance.

5. Learned counsel for respondent No.3 submits that respondent No.3, is not in possession of original CNIC of his deceased father; therefore he cannot be forced by NADRA to surrender the Card.

6. We have heard the learned counsel for the parties and perused the record. There is no dispute that deceased father of appellant and respondent No.3, namely Ashiq Muhammad Khan was holder of CNIC, Section 17(1) of the Ordinance is regarding surrender of Card, which is reproduced hereunder:--

"17. Surrender of cards.---(1) In case of the death of any holder of a card or certificate issued under this Ordinance, his card or certificate shall be surrendered or given up to the District Registrar, or any other person or authority prescribed by regulations, by the spouse, heir, next of kin, parent or guardian, as the case may be, of such holder within sixty days of such death."

Plain reading of Section 17(1) of the Ordinance shows that in case of death of any holder of a Card, inter alia, the heirs are bound to surrender Card of deceased within 60 days of such death.

7. Refusal or failure to produce or surrender the Card also entails penal consequences under section 30(1)(d) of the Ordinance which is reproduced here under:--

"30. Other offences and penalties.- (1) Any person who---

(d) Refuses or fails to produce or surrender a card as required respectively under section 17 or section 18 of this Ordinance or the rules and regulations made thereunder, - - - - -
- - - - - shall, in addition to any other penalty to which he may be liable under any other law, be punishable with rigorous imprisonment for a term which may extend to six months, or with fine not exceeding fifty thousand rupees, or with both. "

8. In view of above clear provisions of sections 17(1) and 30(1)(d) of the Ordinance, it is the legal duty of, NADRA to direct concerned person to surrender the original CNIC of deceased holder of the Card, if same is not already produced. However, in case the legal heirs etc. are not in possession of original Card of deceased, they may satisfy the concerned Authority to this effect.

9. In view of above discussion, the impugned order dated 17.02.2017, is set aside and respondent NADRA is directed to proceed in the matter, strictly in accordance with provisions of the Ordinance.

This appeal is allowed in above terms.

MQ/K-13/L Appeal allowed.